INVESTMENT DUE DILIGENCE MEMORANDUM & BOARDROOM CIRCULAR

【投資審査稟議書】 日本・インド二国間ベンチャー投資適格性評価データルーム

Dossier Ref: TJH-2026-VC01	Date: October 24, 2026	Evaluator: Value Create Inc. (Tokyo) & JETRO	Status: [精査要] CRITICAL_RED_FLAG_REJECT

Drafter 起 案 [承認済]	Reviewer 審 査 [承認済]	Forensic Auditor 精 査 [否認/保留]	Committee 合 議 [審査中]	Final Approver 決 裁 [決裁待ち]
国際投資部 佐藤 承認済	法務コンプラ 鈴木 承認済	財務DD室 高橋 否認/保留	投資委員会 田中 審査中	代表取締役 渡辺 決裁待ち

Target Enterprise:	AutoCare Network India Private Limited (CIN: U50400DL2021PTC378901)	Governance Score:	10 / 100
Sovereign DPI Rails:	[PASS] RBI Account Aggregator (DEPOSIT v2.0) ¦ [PASS] GSTN e-Invoice IRN Verified ¦ [PASS] MCA-21 Direct Registry	CA Opinion:	ADVERSE_DISCLAIMER_OPINION

Pitch Deck Claimed ARR	180.00 Cr	\ 32.40 億円	Founder self-reported deck claim
CA General Ledger (Zoho/Tally)	180.00 Cr	\ 32.40 億円	Internal trial balance sales register
Cleared Bank Cash (RBI AA)	31.89 Cr	\ 5.74 億円	79.1% Divergence (Gap: 12065.5L / \21.72億円)
True Cash Runway	0.0 Months	Claimed: 16.0 Mo	Net of 2171.8L (\3.91億円) pending statutory tax dues

STATUTORY FORENSIC FINDINGS & BOARDROOM ACTION MEMORANDUM

[CRITICAL] Undisclosed Section 188 Promoter Self-Dealing & Siphoning: Direct RTGS debit of 4,800,000.00 disbursed to Oberoi Spares & Auto Components LLP. Slicing characters 3-12 of GSTIN '07AROPO8901L1Z9' reveals PAN 'AROPO8901L', which matches company Director Rishabh Oberoi. Zero Board Resolution (Form MGT-14) or Audit Committee pre-approval on record. (Statute: Companies Act 2013 Section 188 (Related Party Transactions) & Section 185 (Prohibition of Loans to Directors))

[CRITICAL] Undisclosed Section 188 Promoter Self-Dealing & Siphoning: Direct RTGS debit of 27,800,000.00 disbursed to Singhal Capital & Holdings. Slicing characters 3-12 of GSTIN '07AABCA4567M1Z1' reveals PAN 'AABCA4567M', which matches company Director Amitesh Singhal. Zero Board Resolution (Form MGT-14) or Audit Committee pre-approval on record. (Statute: Companies Act 2013 Section 188 (Related Party Transactions) & Section 185 (Prohibition of Loans to Directors))

[CRITICAL] Fictitious / Phantom Revenue Invoicing Without Cleared Bank Cash (AUTO-INV-2026-0006): Invoice AUTO-INV-2026-0006 for 76,271,186.44 (+ 13,728,813.56 GST) was booked in CA sales and uploaded to GSTR-1, but marked 'UNOFF_SET_UNPAID' on GSTR-3B. Zero customer remittances entered the sovereign bank ledger across 180 days, inflating reported ARR by 57.8%. (Statute: Central Goods & Services Tax (CGST) Act 2017 Rule 88C (Tax Discrepancy) & ICAI SA 240 / SA 505 (Auditor Confirmation of Debtors))

Cryptographic Tamper-Proof Merkle Root: 0xdb2ff5474e0639c133a3baabc64909a7e99d21b714eba3050eb54e76ac54a74d
Admissible under Section 65B of the Indian Evidence Act 1872 & J-SOX Internal Control Standards. Generated by VeriLedger Engine.